

Complaint Report (CCRB)

CCRB Case No :	201908924	C/V Report Date :	Sat, 10/05/2019
Complaint Type :	CCRB	Investigator :	Zachary Herman
Complaint Made At :	IAB	Ref. No	19-36991
Received Date (CCRB) :	Thu, 10/10/2019 10:59 AM	Mode :	Phone
Incident Date(s) :	Saturday, 10/05/2019 11:00 PM		
Place of Occurrence:	[REDACTED]	Precinct:	42
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Lacerations with Stitches	Trauma to the mouth.	

Name:	[REDACTED]	Type:	Reporting Non-Witness
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Vehicle - (F) Alleged Victim Unavailable
POM	Emmanuel Guerrero	Subject Officer	951795	Hispanic	042	Vehicle - (F) Alleged Victim Unavailable

Initial Complaint Narrative

On October 5, 2019 at 10:45 p.m., Detective Moy received a call from 911 operator #1027 that had he had spoken to a female/complainant who stated her friend was hit by a police vehicle and was injured. 911 requested an ambulance before connection with IAB. The investigating officer requested PS to the caller's location to ascertain further details. At 10:50 p.m., an officer called the female complaint, the number was not working. At 11:00 p.m., an officer received a call from the 52nd Precinct, which reported § 87(2)(b) was being chased by police while he was on an electric Scooter. He was hit by the vehicle causing trauma to his mouth, and he was transported from his friend's house to § 87(2)(b) Hospital. Sergeant Allen requested the 42 Precinct Supervisor to the Hospital for further investigation. At this time no notification to the Patrol Duty Captain has been made. At 11:30 p.m., Sergeant Duerr stated that PO Vargas and PO Guerrero assigned to an Anti-Crime unit and observed § 87(2)(b) operating a Moped without a helmet. PO Vargas and PO Guerrero attempted to stop § 87(2)(b) when he turned around, stated, "No," continued to refuse to stop and hit the vehicle that was in front of him. Both officers got out, asked if § 87(2)(b) needed medical attention, he refused. No summons or arrest were made at this time. § 87(2)(b) left the scene. Officers remained on scene to prepare an accident report. § 87(2)(b) received a CT-Scan and several stitches to his face at the hospital. Duty Captain Bacchi was notified.

Witness
